

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

**Before the Honorable Doris Johnson Hines
Administrative Law Judge**

In the Matter of:

CERTAIN WEARABLE DEVICES

Investigation No. 337-TA-1478

**RESPONDENTS' OPPOSITION TO SAMSUNG'S MOTION *IN LIMINE* NO. 1
(EDIS Doc. ID 892505, Mot. No. 1478-012)**



	<u>Page</u>
I. INTRODUCTION	1
II. BACKGROUND	2
III. ARGUMENT	4
A. Mr. Jarosz Reasonably Testified that Samsung Failed to Support Its Claims	4
B. Expert Testimony on Failure of Proof Is Highly Probative	10
C. <i>Daubert</i> Motions to Protect Juries Do Not Apply Before Commission	12
IV. CONCLUSION	13

TABLE OF AUTHORITIES

	Page(s)
Cases	
<i>Certain Automated Storage and Retrieval Systems, Robots, and Components Thereof,</i> Inv. No. 337-TA-1228, ID at 160 (Dec. 13, 2021)	11
<i>Certain Earpiece Devices and Components Thereof,</i> Inv. No. 337-TA-1121, Comm’n Op. at 19 (Nov. 8, 2019).....	10
<i>Certain Electronic Candle Products and Components Thereof,</i> Inv. No. 337-TA-1195, Comm’n Op. at 11 (Oct. 4, 2022)	10
<i>Certain Light-Based Physiological Measurement Devices & Components Thereof,</i> Inv. No. 337-TA-1276, ID at 329, (Jan. 10, 2023)	9
<i>Certain Magnetic Data Storage and Tapes and Cartridges Containing the Same (II),</i> Inv. No. 337-TA-1076, ID at 154 (Oct. 25, 2018).....	13
<i>Certain Mobile Devices with Multifunction Emulators,</i> Inv. No. 337-TA-1170, Order No. 23 at 3 (July 29, 2020).....	4
<i>Certain Nanolaminate Alloy Coated Metal Parts & Products Containing Same,</i> Inv. No. 337-TA-1431, Comm’n Op. at 37 (Aug. 3, 2026).....	12
<i>Certain Power Semiconductors, and Mobile Devices and Computers Containing Same,</i> Inv. No. 337-TA-1308, ID at 119 (May 18, 2023)	10
<i>Certain Replacement Automotive Lamps,</i> Inv. No. 337-TA-1291, Comm’n Op. at 25 (Mar. 7, 2024)	10
<i>Certain Soft Projectile Launching Devices, Components Thereof, Ammunition, & Products Containing Same,</i> Inv. No. 337-TA-1325, Comm’n Op. at 51 (Dec. 18, 2025)	11
<i>Certain Television Sets, Television Receivers, Television Tuners, & Components Thereof,</i> Inv. No. 337-TA-910, Comm’n Op. at 65-66 (Oct. 20, 2015).....	5, 9
<i>Certain Toner Supply Containers & Components Thereof,</i> Inv. No. 337-TA-1259, Comm’n Op. at 11 (Aug. 19, 2022).....	9

<i>Certain Vaporizer Devices, Cartridges Used Therewith, & Components Thereof,</i> Inv. No. 337-TA-1464, Order No. 26 at 11 (June 15, 2026)	1, 12
<i>Gen. Elec. Co. v. Joiner,</i> 522 U.S. 136 (1997).....	12
<i>Horton v. W.T. Grant Co.,</i> 537 F.2d 1215 (4th Cir. 1976)	11
<i>Mac Sales, Inc. v. E.I. du Pont de Nemours & Co.,</i> 24 F.3d 747 (5th Cir. 1994)	11
<i>McDowell v. Brown,</i> 392 F.3d 1283 (11th Cir. 2004)	12
<i>In re Salem,</i> 465 F.3d 767 (7th Cir. 2006)	12

I. INTRODUCTION

Samsung seeks wholesale exclusion of Mr. Jarosz's highly probative opinions that detail the deficiencies of Samsung's economic domestic industry ("EDI") case. It protests too much. In doing so, Samsung highlights its failure to provide necessary explanation and context to credibly understand and evaluate Samsung's investments, and how Samsung's expert Julia Rowe must make blind assumptions that black-box investment categories are reliable. In each instance where Samsung critiques Mr. Jarosz's testimony, Mr. Jarosz's opinions show Samsung's fundamental failure of proof and his opinions are useful and admissible for providing a fulsome record on the issue of EDI.

Samsung's motion is also misdirected and premised on out-of-context snippets from Mr. Jarosz's deposition testimony. Samsung imposes a *Daubert* framework, geared to protecting juries in district court, on expert testimony that will be presented before an ALJ who can make credibility determinations on testimony as it is presented. This is improper. *Certain Vaporizer Devices, Cartridges Used Therewith, & Components Thereof*, Inv. No. 337-TA-1464, Order No. 26 at 11 (June 15, 2026) (EDIS ID 885892) ("The *Daubert* doctrine is attenuated in administrative proceedings, where there is no danger of jury confusion. If [the expert's] methodology is unreliable, his opinions will be given little or no weight."). And for good reason: The ALJ and the Commission are best served by a fulsome record evaluated through the adversarial process. Samsung's motion here is a last-ditch effort to weaken that process and protect its EDI case from a fair challenge.

Even if a *Daubert* framework were appropriate, Samsung does not challenge Mr. Jarosz's qualifications to assess EDI, which falls squarely within his expertise as an economist specializing in the economics of intellectual property. MIL, Ex. G (Jarosz Rep.) ¶ 10. Mr. Jarosz's conclusions regarding such data (including that the data on its face fails to provide the level of specificity

[REDACTED]

necessary to evaluate EDI) flow directly from this expertise, making his testimony valuable to the factfinder.

II. BACKGROUND

Samsung contends that its U.S. subsidiary SEA has made sufficient EDI investments in its three DI Product categories: phones, watches, and its ring. SPreHB at 290 (EDIS ID 891086). To determine which of SEA's expenses are related to each DI Product, Samsung applied a blanket allocation factor across a subset of SEA's expenses. *Id.* at 291-95. This subset was generated by Samsung's assignment of [REDACTED] *Id.* at 292-93. The expense information was provided entirely by a spreadsheet that SEA produces in other litigations involving its mobile products. MIL, Ex. B (CX-1469C); MIL, Ex. G (Jarosz Rep.) ¶ 76 n.175.

Oura's efforts to get Samsung's underlying documents to prove up its expenses were stymied at every turn. More specifically, beginning in February 2026, Oura pursued several avenues to obtain fulsome discovery regarding Samsung's EDI case, including through letters and meet and confers (Ex. 1), engaging in the formal discovery dispute procedure (Ex. 2), issuing formal discovery requests targeted to understanding the positions that Samsung had taken and the data it had produced in this Investigation (Ex. 3), and (again) engaging in the formal discovery dispute procedure (Ex. 4). Although Oura's efforts ultimately led to Samsung providing some, limited, detail about its produced spreadsheets, significant questions remained.

On May 21, 2026, Samsung produced Christopher Martinez, a product management director for SEA, for a deposition on EDI. MIL, Ex. D (Martinez). His testimony revealed critical gaps in his understanding of Samsung's produced expense data. *See, e.g., Id.* 94:23-95:10 (unable to identify cost centers that are not related to DI Products); 130:20-131:7 (unable to identify

[REDACTED]

contribution by certain investments to non-DI product smart TVs); 158:8-24 (unable to describe what activities happen at SEA's headquarters).

On June 10, 2026, Samsung served a report from EDI expert Julia Rowe. MIL, Ex. E. Her opinions on Samsung's expenses were largely based on that same spreadsheet (MIL, Ex. B (CX-1469C, SAMS382-011281)), as supplemented by more than one hundred references to an off-the-record "interview" with Mr. Martinez conducted after his deposition.

On June 21, Oura served a rebuttal report from its economic expert, Mr. Jarosz, a highly regarded economics expert who has been engaged in dozens of proceedings before the Commission. 1468 Hr'g Tr. 619:14-620:5 (EDIS ID 889282). His report rebutted Ms. Rowe's opinions on EDI (and presented opinions on bonding and remedy). *See generally* MIL, Ex. G. In sum, Mr. Jarosz opined that Ms. Rowe relied on an "overinclusive investment base," used an overbroad allocation methodology, and failed to use appropriate significance benchmarks. *Id.* ¶ 4.

On July 2, Samsung deposed Mr. Jarosz. MIL, Ex. A. At several points he identified the limitations in the data Samsung provided. *See, e.g., id.* 40:10-20 (identifying Samsung's failure to disclose the inputs to the data it reported), 53:1-15 (criticizing Ms. Rowe for not doing a more "thorough analysis" of expense categories, and testifying "I had more records that I examined [in the 1468 Investigation] than appears to be the case with what Ms. Rowe did in the 1478 case."), 84:14-23 (testifying that the limited relationship between at least half of the cost centers Ms. Rowe relied on to the DI Products indicates that "[m]ore work needs to be done" by Ms. Rowe).

In addition, Samsung's counsel's strategy was rife with attempted "gotchas" and assumptions that did not flow from Mr. Jarosz's testimony, including that he had drawn an opinion that Samsung had no economic domestic industry whatsoever:

Q. Okay. What I'm trying to clarify is that you don't provide a separate affirmative opinion regarding Samsung's economic domestic industry. Correct?

[REDACTED]

A. I'm not quite sure of the definition of “a separate affirmative opinion.” I have provided my conclusions as to Ms. Rowe’s work, and they lead me to the conclusions that you see here. Whether you would call that a separate affirmative opinion or just a rebuttal I don't know.

[....]

Q. Is it your opinion that Samsung has no domestic industry in this case?

A. No, I don't think I’ve drawn that specific opinion. The opinions that I do have on domestic industry are...summarized in Paragraph 4.

Id. 28:3-23; *see also* MIL, Ex. G (Jarosz Rep.) ¶ 4 (summarizing the reasons, detailed later in his report, for opining Ms. Rowe did not show “adequate economic support” for Samsung’s EDI case).

Oura’s pre-hearing brief noted Samsung’s significant failures of proof (and failures of credibility) in its EDI case. OPreHB at 263-64 (EDIS ID 891087). Following that filing, Samsung filed the current motion *in limine* (“MIL”) to indiscriminately exclude all of Mr. Jarosz’s opinions.

III. ARGUMENT

A. Mr. Jarosz Reasonably Testified that Samsung Failed to Support Its Claims

Samsung grossly mischaracterizes Mr. Jarosz’s testimony through a careless cut-and-paste job. Among these mischaracterizations is Samsung’s assertion that Mr. Jarosz “does not even dispute that Samsung has an economic domestic industry in the United States,” which is both irrelevant, as “an economic domestic industry in the United States” is not the Section 337 standard (which requires qualifying and significant domestic investments in DI Products), and frivolous, as Mr. Jarosz served a full report identifying the deficiencies in Samsung’s EDI case.¹ MIL at 7. Samsung also accuses Mr. Jarosz of being unable to “filter” data or “apply” an allocation

¹ Furthermore, it is not the expert’s purview to decide the ultimate legal conclusion of whether or not the economic prong of the domestic industry requirement is satisfied. *Certain Mobile Devices with Multifunction Emulators*, Inv. No. 337-TA-1170, Order No. 23 at 3 (July 29, 2020) (EDIS ID 716480) (acknowledging that expert testimony on legal conclusions is impermissible).

[REDACTED]

methodology, but does not cite any portion of his deposition where he says he is unable to do either of those things. MIL at 7.

A complete reading of Mr. Jarosz's testimony over the pages Samsung cited as the basis of its MIL shows that he reasonably opined that the financial data produced by Samsung, and relied on by Ms. Rowe, lacked sufficient detail to support Samsung's EDI case. Mr. Jarosz supported his opinions in terms of, for example, from where the data was pulled and what that data is intended to specifically represent. Such opinions do not reflect any failures of Mr. Jarosz's personal understanding or capacity to assess the data. Samsung's shifting-sands approach to EDI and the complexity of its own records that its own expert has difficulty understanding does not warrant exclusion of Mr. Jarosz's opinions, for multiple reasons. *See Certain Television Sets, Television Receivers, Television Tuners, & Components Thereof*, Inv. No. 337-TA-910, Comm'n Op. at 65-66 (Oct. 20, 2015) (EDIS ID 568157) ("*Television Sets*") (affirming ALJ determination that "there is a lack of credible evidence to assess the domestic industry requirement" because of complainant's "[i]nconsistencies, contradictions and unsupported assertions").

First, Mr. Jarosz testified that he presented a summary table in his report using Ms. Rowe's representation of SEA's labor and capital investments per employee, but he did not fully understand how Ms. Rowe reliably reached those numbers using Samsung's produced records. MIL, Ex. A at 38:23-39:9. When asked, "What about Samsung's records don't you understand?" he explained, "I see the outputs that were used, but I don't know how those outputs were put together." *Id.* at 38:13-18; *see also id.* at 40:10-41:4 (noting that the spreadsheets used for Samsung's expenses had hard-coded numbers and did not indicate their provenance). He went on to identify many areas where a comprehensive evaluation was made impossible by Samsung's limited discovery, including how the [REDACTED] was done and "how the

[REDACTED]

expenses that are counted up by Samsung are specific to these patents and these products at issue here.” *Id.* at 39:13-40:9. In sum, Mr. Jarosz was explaining the deficiencies in Samsung’s black-box production of its expenses that concealed key inputs—i.e., how the numbers were derived.

Ms. Rowe admitted she also lacked knowledge of these same issues. She did not see how the outputs in the spreadsheet were put together, admitting that the only “underlying records” of the expenses she reviewed were the numbers entered into that expense spreadsheet. Ex. 5 (Rowe Dep.) 49:5-50:11; *see also id.* 47:3-51:10 (admitting she did not know of any time records, invoices, receipts, agreements, leases, facility blueprints, or any other “payment records”).

Similarly, although she claimed to understand how “SEA categorized cost centers into legal mapping groups” and the “legal mapping to cost centers” relationship, she could not provide that information: She admitted that, as far as she knew, the legal mapping groups were not created to capture investments for the DI Products. *Id.* 137:14-16. She believed that “someone at finance” created those categories, but did not know who. *Id.* 136:3-21. All she knew about the legal mapping groups was from Mr. Martinez, who she “assume[d]...spoke to the person who did it.” *Id.* 137:2-13. Mr. Martinez, for his part, admitted that he had no idea why certain cost centers were identified for the legal mapping groups. *See, e.g., MIL*, Ex. D (Martinez) 94:23-95:10 (unable to identify which cost centers are not related to the DI Products), 99:6-101:16 (unaware of whether several cost centers had anything to do with the DI Products). He even admitted that these cost centers included activities outside of mobile services (“MX”). *Id.* 161:3-17, 162:8-164:17 (admitting that costs “bleed” across product categories and he could not say with certainty whether cost centers are limited to mobile products, much less the DI Products).

On “how the expenses that are counted up by Samsung are specific to these patents and these products at issue here,” which Mr. Jarosz said was clear as mud, Ms. Rowe’s testimony

[REDACTED]

showed she also could not find support. She testified that Mr. Martinez had specifically informed her about just [REDACTED]. Ex. 5 (Rowe Dep.) 164:2-15, 167:11-168:10; 164:16-165:19. But even for those three, Mr. Martinez did not have this information at his deposition. *See* MIL, Ex. D (Martinez) 100:8-13 (“I did not specifically make any verifications ongoing—any levels beyond just this—this huge list that I was provided.”). For example, Ms. Rowe testified that Mr. Martinez confirmed that the [REDACTED] directly related to the DI Products (i.e., phones, watches, and ring). Ex. 5 (Rowe Dep.) 164:16-165:19. But at his deposition, Mr. Martinez testified that the [REDACTED] related to product management for the “tablet product” (which is not a DI Product), but “couldn’t tell” more. MIL, Ex. D (Martinez) at 99:3-24. Similarly, Ms. Rowe testified that Mr. Martinez explained that “every single employee within the [REDACTED] cost center has roles and responsibilities outside of tablets and PCs.” Ex. 5 (Rowe Dep.) 154:20-155:1. But at his deposition, Mr. Martinez could not say with any certainty whether people within that group did work outside of non-DI product tablets and computers. MIL, Ex. D (Martinez) 99:25-102:23.

Second, Mr. Jarosz testified that Samsung did not clearly identify the “difference between [REDACTED].” MIL, Ex. A (Jarosz Dep.) 39:13-40:9; Ex. 6 (errata). Ms. Rowe appears to share this confusion. She admitted that SEA’s normal cost coding for business areas, which follows the pattern [REDACTED], etc., breaks down for [REDACTED]. *See, e.g.*, Ex. 5 (Rowe Dep.) 121:9-122:7 (“The cost data doesn’t have [REDACTED] but some of the revenue data does, and that is associated with [REDACTED].”), 138:16-20 (agreeing that CX-1469C contains expenses across [REDACTED]). But in her report, she described [REDACTED] not a revenue category. MIL, Ex. E (Rowe Rep.) ¶ 95. Mr. Martinez’s understanding was that [REDACTED] was a business area that combined [REDACTED]. MIL, Ex. D (Martinez) 98:1-14. Mr. Jarosz adopted the definition

[REDACTED]

Ms. Rowe set out in her report, supplemented with testimony provided by Samsung in a separate investigation, for purposes of analyzing her opinions. MIL, Ex. G (Jarosz Rep.) ¶ 54 n.118, ¶ 55 n.119.

Adding more confusion about expenses under business areas, Ms. Rowe relied on investments outside of the mobile services division: Samsung defined the mobile services division to be [REDACTED] Ex. 3 at 9-10; MIL, Ex. D (Martinez) 97:5-25. Samsung further identified that “Legal Mapping...lists each organization within the mobile division”; i.e., that each legal mapping group is within [REDACTED]. Ex. 3 at 10. But Ms. Rowe used investments from [REDACTED] [REDACTED]. See Ex. 5 (Rowe Dep.) 117:4-20 (defining [REDACTED]), 118:21-119:1 (relying on [REDACTED]); see also *id.* 114:20-115:4 (testifying that the [REDACTED] is not within mobile (MX) services), 134:6-13 (Q. “[W]hat is the distinction between the [REDACTED] group and the business area [REDACTED] A. “I think they are the same thing.”). Mr. Jarosz’s testimony that Samsung failed to clearly identify its expenses for EDI purposes was spot on.

Third, Mr. Jarosz testified that Samsung did not sufficiently explain how SEC’s foreign investments were put together and how they were allocated. MIL, Ex. A (Jarosz Dep.) 41:7-42:17. However, Mr. Jarosz could, assuming facial reliability, use some of that non-U.S. data to show that Ms. Rowe’s significance benchmarks using just U.S. data were off base. See, e.g., MIL, Ex. G (Jarosz Rep.) ¶¶ 126-36; MIL, Ex. A (Jarosz Dep.) 133:19-135:6. Samsung’s MIL does not identify any failures in Mr. Jarosz’s assessments of the data Samsung did produce (and even if Samsung could, that would be an issue best left for cross-examination rather than a basis for exclusion). And the Commission endorses the utility of foreign benchmarks to weigh the

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significance of EDI investments. *See, e.g., Certain Toner Supply Containers & Components Thereof*, Inv. No. 337-TA-1259, Comm’n Op. at 11 (Aug. 19, 2022) (EDIS ID 778370).

Fourth, Mr. Jarosz testified that although he did not have a reason to believe that Samsung’s [REDACTED] is “per se unreliable,” in his “experience doing analyses like these and...particularly in ITC investigations, the data upon which conclusions are drawn must be reliable,” requiring one to “understand the bases for the recordkeeping and record reporting to understand if one can rely on the data there.” MIL, Ex. A (Jarosz Dep.) 44:7-45:16. Accordingly, even with the understanding that Samsung’s financial reports are generally “audited” for compliance with accounting standards, Mr. Jarosz testified that they may not be reliable for drawing conclusions about qualifying investments in the DI Products for the purpose of proving EDI under Section 337. *Id.* 45:17-46:14.

Ms. Rowe’s deposition revealed widespread uncertainty about the data underlying her conclusions. This is disastrous for Samsung, which has the burden of showing that its record of qualifying EDI investments is reliable. *Television Sets*, Inv. No. 337-TA-910, Comm’n Op. at 59 (affirming determination “that the economic prong was not met...because of the unreliability of [complainant’s] evidence.”); *Certain Light-Based Physiological Measurement Devices & Components Thereof*, Inv. No. 337-TA-1276, ID at 329 (EDIS ID 789795) (Jan. 10, 2023) (finding failure to show significant investments where complainants relied on a spreadsheet, “but it [was] not clear from these spreadsheets how the [redacted] figure was derived”).

As a few examples: Ms. Rowe could not explain with certainty why the claimed investments she presented in her report were different than the investments Samsung presented in its EDI contentions. Ex. 5 (Rowe Dep.) 74:15-76:4 (testifying she performed a “similar” calculation as in Samsung’s EDI contentions); 77:4-21, 80:19-82:19 (admitting differences in the

[REDACTED]

claimed investments but not being able to provide more than an “expectation” of what led to the discrepancies). She also could not justify her characterization of certain expenses as capital investments under Section 337 except for her “understanding” that “facility-related investments have been considered capital.” *Id.* 236:3-239:13. And Ms. Rowe grouped together expenses for separate DI Products to make her report more “readable” without considering any differences between the products. *Id.* 68:8-72:22.

B. Expert Testimony on Failure of Proof Is Highly Probative

Even if Mr. Jarosz were not able to provide helpful testimony about what conclusions could be drawn from Samsung’s records (and he is), Samsung raises no argument that Mr. Jarosz cannot provide useful challenges to **Ms. Rowe’s** methods of evaluating those records. *See, e.g., Certain Replacement Automotive Lamps*, Inv. No. 337-TA-1291, Comm’n Op. at 25 (Mar. 7, 2024) (EDIS ID 816597) (finding error where the ID found significance based on a methodology that “Respondents did not have an opportunity to challenge”); *Certain Power Semiconductors, and Mobile Devices and Computers Containing Same*, Inv. No. 337-TA-1308, ID at 119 (May 18, 2023) (EDIS ID 798314) (rejecting claimed investments that complainant had erroneously triple-counted). This is the crux of Jarosz’s report. MIL, Ex. G (Jarosz Rep.) ¶ 4 (summarizing bases for his report, including that Ms. Rowe “does not provide adequate economic support establishing the existence of a DI relating” to the DI Products and criticism of her methodologies); *see also, e.g., id.* ¶¶ 90-99 (describing Ms. Rowe’s effective double-counting in her allocation).

Samsung carries the burden to show “that the domestic industry requirement is satisfied.” *Certain Electronic Candle Products and Components Thereof*, Inv. No. 337-TA-1195, Comm’n Op. at 11 (Oct. 4, 2022) (EDIS ID 781605); *see also Certain Earpiece Devices and Components Thereof*, Inv. No. 337-TA-1121, Comm’n Op. at 19 (Nov. 8, 2019) (EDIS ID 693820) (finding that domestic industry was not established where complainant “does not provide context of the

[REDACTED]

company's operations, the marketplace, or the industry in question necessary to understand whether the relative value of its domestic activities and investments is significant or substantial.”). Mr. Jarosz's expert challenge to the sufficiency and reliability of Samsung's evidence (including its expert's opinions) is helpful in determining whether Samsung carried that burden. For example, in a recent investigation the Commission cited Ms. Rowe's opinion that there was not “reliable evidence” as support for its finding that the complainant had not carried its burden to show EDI. *Certain Soft Projectile Launching Devices, Components Thereof, Ammunition, & Products Containing Same*, Inv. No. 337-TA-1325, Comm'n Op. at 51 (Dec. 18, 2025) (EDIS ID 867953).

Moreover, expert testimony that a document's data is not fully understandable is highly probative of the reliability of a contention that depends on that document. In *Certain Automated Storage and Retrieval Systems, Robots, and Components Thereof*, respondents had disputed the complainant's expert's opinions on whether the financial data reported by certain documents was reliable. Inv. No. 337-TA-1228, ID at 160 (Dec. 13, 2021) (EDIS ID 760094). But because no expert had “testified to a lack of understanding” of the data, the ALJ concluded that it was. *Id.* at 161.

None of the cases Samsung cites involving a granted *Daubert* motion applies even remotely to Mr. Jarosz's testimony (much less the Commission, as set out in the next section). *Mac Sales, Inc. v. E.I. du Pont de Nemours & Co.*, 24 F.3d 747, 752-53 (5th Cir. 1994) had to do with excluding an expert's testimony on a topic (foreign markets) that he “flatly state[d]...he did no research on.” Here, Samsung does not dispute that Mr. Jarosz is qualified to opine on EDI, merely that he did not fully understand Samsung's purported evidence of it. *See* 1468 Hr'g Tr. 620:6-11 (EDIS ID 889282) (no objection to Mr. Jarosz testifying as an expert on economic issues at the ITC). *Horton v. W.T. Grant Co.*, 537 F.2d 1215, 1218 (4th Cir. 1976), excluded testimony on an

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outlier product as representative of all. *McDowell v. Brown*, 392 F.3d 1283, 1300 (11th Cir. 2004), excluded testimony on medical decision-making that was based solely on an article that did not support the proffered opinion. And *Gen. Elec. Co. v. Joiner*, 522 U.S. 136, 137 (1997), rejected opinions based on “*ipse dixit*,” which Samsung did not allege here, and does not apply anyway given Mr. Jarosz’s uncontested citations and references to Samsung’s data and expert report.

C. Daubert Motions to Protect Juries Do Not Apply Before Commission

In proceedings before the Commission, which do not require evidentiary protections for the jury, there is no need for *Daubert* gatekeeping. See, e.g., *Certain Nanolaminate Alloy Coated Metal Parts & Products Containing Same*, Inv. No. 337-TA-1431, Comm’n Op. at 37 (Aug. 3, 2026) (EDIS ID 890272) (disagreeing with the ALJ’s rejection of evidence based “on the *Daubert* doctrine”). Accordingly, even if Mr. Jarosz’s opinions are found to be unreliable (which they are not), exclusion is not appropriate before the ALJ, who will weigh them accordingly when they are presented at the hearing. *Certain Vaporizer Devices, Cartridges Used Therewith, & Components Thereof*, Inv. No. 337-TA-1464, Order No. 26 (Regarding Motions in Limine) at 11 (June 15, 2026) (EDIS ID 885892) (“The *Daubert* doctrine is attenuated in administrative proceedings, where there is no danger of jury confusion. If [the expert’s] methodology is unreliable, his opinions will be given little or no weight.”). “As both gatekeeper and factfinder,” the ALJ should “admit[] the evidence subject to the ability later to exclude it or disregard it if it turns out not to meet the standard of reliability established by Rule 702.” *Id.* (quoting *In re Salem*, 465 F.3d 767, 777 (7th Cir. 2006)). There is no risk, as Samsung urges, that the ALJ’s decision-making will be impaired by Mr. Jarosz’s testimony.

However, there will be certain prejudice to Oura if the testimony of Mr. Jarosz is excluded (which, as discussed above, is entirely unwarranted). Samsung’s motion seeks to eliminate any expert challenge to its EDI presentation, which will impair the ALJ’s and Commission’s ability to

[REDACTED]

effectively weigh and adjudicate Samsung's investments according to Section 337. *See, e.g., Certain Magnetic Data Storage and Tapes and Cartridges Containing the Same (II)*, Inv. No. 337-TA-1076, ID at 154 (Oct. 25, 2018) (EDIS ID 662081) (rejecting a challenge to the complainant's attribution of costs to DI products solely because the challenge was an "attorney statement," which "carries no weight in contradicting [the complainant's] evidence," including expert testimony).

Moreover, Samsung's motion is for wholesale exclusion, failing to distinguish the areas discussed in the cited portion of his deposition (e.g., opinions about the transparency of Samsung's financial data) from other opinions, including comparisons of that data to significance benchmarks and criticisms of Ms. Rowe's financial evaluations. *See, e.g., MIL, Ex. G (Jarosz Rep.)* ¶¶ 67 (likely overestimation of labor compared to industry benchmarks), 68-73 (failure of facial cost descriptions to satisfy Section 337 standards), 74-82 (lack of connection between reported cost centers and DI Products), 83-99 (improper method of applying allocation to the DI Ring), 100-25 (improper significance benchmarks), 137-39 (application of Commission significance benchmarks), 140-45 (trend of [REDACTED] using Ms. Rowe's representations), 148-53 (lack of qualitative significance). In sum, Samsung seeks a chance to advance its EDI case (which, as set out above, is on thin ground) without any rebuttal at all. This does a disservice to the Commission's efforts to apply Section 337, with no upside.

IV. CONCLUSION

Because Mr. Jarosz will provide helpful testimony about Samsung's failure to provide sufficient support for its EDI case, and because exclusion under *Daubert* is not appropriate here and would significantly impair the record, Samsung's motion to exclude Mr. Jarosz's testimony should be denied.

Dated: September 2, 2026

Respectfully submitted,


/s/ Jasjit S. Vidwan

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Exhibit 1

March 2, 2026

BY ELECTRONIC DELIVERY

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Re: *Certain Wearable Devices*, Inv. No. 337-1478 – Feb. 27, 2026, Meet & Confer

Dear Mr. Trainor:

We appreciate that you and Nancy Schroeder met over teleconference with Tiffany Miller, Julia Haines, and me on February 27, 2026, to discuss Oura's Request for Entry and Samsung's discovery deficiencies. Below, we have summarized our understanding of the conversation and identified the compromises that Samsung requested. As stated on the call, we understand that Samsung believes that it is not yet required to provide complete responses and productions because fact discovery will not end until May 21, 2026. But as Oura stated on the call, our position is that Samsung—particularly as the entity that sought this Investigation from the Commission—is obligated to provide discovery within its possession, custody, and control within the time set out by the Rules. *See, e.g.*, G.R. 6.4.2, 6.4.3. Accordingly, if Samsung's responses and document production are not substantially complete by March 16, 2026, Oura will take more formal action.

I. Request for Entry

Rule 210.30 permits Oura to request inspection of facilities on which Samsung is relying to demonstrate economic domestic industry. On the call, Oura offered to propose a protocol that will facilitate these inspections. Oura also offered to narrow the inspections to only those facilities on which Samsung is explicitly relying to support its economic domestic industry contentions. Oura also reiterated that the only burden and expense will fall on Oura, as the inspecting party, and not on Samsung, which must simply open its doors.

However, Samsung has made a blanket refusal to allow inspection of any of its facilities. Samsung's position is that Oura is not entitled to inspect Samsung's facilities, no matter how narrow the request for entry or how carefully drawn up the inspection protocol. Because Samsung's position is that no circumstance would warrant inspection, Samsung declined discussing any compromises. Oura maintains that its Request for Entry is appropriate. Samsung

March 2, 2026

Page 2

told Oura that it would move for a protective order within ten days of Oura's service of the Request for Entry.

II. Samsung's Deficient Interrogatory Responses

Below, Oura has summarized the parties' positions on certain interrogatories and, in some cases, has proposed compromises setting out a more limited scope. Please confirm that Samsung accepts those compromises.

Interrogatory No. 7:

Samsung agreed to investigate these facts and provide a timely supplemental response.

Interrogatory No. 8:

Samsung agreed to investigate these facts. If there is no non-privileged information, Samsung will clearly state as much in a supplemental response.

Interrogatory No. 9:

Samsung contends this interrogatory is too broad, but it offered to respond with respect to persons most knowledgeable. Oura disagrees that this interrogatory seeks information outside the scope of appropriate discovery, especially in light of Samsung's apparent reliance on investments in U.S. labor to support its economic domestic industry contentions. If Samsung is relying on its employees to show a significant domestic investment, the identity of those employees who have performed work with respect to DI Products is highly relevant.

However, in the spirit of compromise, Oura has considered Samsung's position and will limit the interrogatory to *five* persons most knowledgeable (whether past or present employee, contractor, or consultant) about *each* of Samsung's DI Products. Please confirm that Samsung accepts this compromise.

Interrogatory No. 12:

Samsung contends this interrogatory is too broad because it is not expressly tied to the facts relevant to this Investigation. Samsung also mischaracterized this interrogatory as seeking verbatim transcripts of all discussions ever conducted with the named Inventors.

In the spirit of compromise, Oura proposes limiting "discussions or agreements with any of the named inventors of the Asserted Patents" to those relating to discussions or agreements related to the Asserted Patents or DI Products. Oura maintains that this interrogatory fairly seeks a complete description of the "facts and circumstances" regarding those "discussions or agreements." Please confirm that Samsung accepts this compromise.

Interrogatory No. 13:

Although this interrogatory was not expressly discussed on the Feb. 27 call, Oura explained that its subject matter (including licenses) is relevant to the Investigation, as set out further below in connection with Oura's request for the production of Samsung's licensing agreements and surrounding documentation and correspondence.

III. Deficient Document Production

Although Samsung has served a second production, it is still deficient in many categories, including the following that Oura noted on the call. These categories are exemplary only, and Oura maintains it is entitled to a complete production in response to its Requests for Production.

Transcripts/Documents from Other Proceedings:

As Oura reminded Samsung on the call, Samsung's investments relating to the DI Products were the subject of several earlier proceedings, including -1299, 1376, 1379, and 1380. Oura requests those Samsung deposition and hearing transcripts and documents. Samsung responded that it was a third party in these investigations and may not have those transcripts and documents. Oura requested that Samsung look for these records and, if they are not in Samsung's possession, custody, or control, promptly identify who does have those documents so that Oura can seek their production. Oura clarified that these are Samsung's documents and transcripts from Samsung's witnesses, and accordingly there is no reason why any would elicit third-party confidentiality concerns. Samsung agreed to investigate these transcripts and documents and produce what it finds.

Licenses:

Samsung alleged that its licenses to its Asserted Patents and related patents, including those with the licensees identified in Exhibit 10 to its Complaint, are not relevant because Samsung is not raising licensing as support for its economic domestic industry contentions. Oura responded that these licensing documents are relevant to issues that are in the Investigation, including but not limited to bond, secondary considerations, and standing. Moreover, Samsung has requested Oura's licensing information in earlier Investigations under similar circumstances, characterizing Oura's licensing documentation as highly relevant. The same framework should apply to Samsung's licensing documentation. Samsung agreed to investigate and produce.

Third-Party Correspondence:

Samsung agreed to investigate and produce any third-party correspondence concerning the Asserted Patents or related patents if it understands the correspondence to be relevant. Otherwise, Samsung will supplement its responses with a clear statement that it will not produce these documents and the reasons for withholding them.

Economic Domestic Industry Documents:

March 2, 2026

Page 4

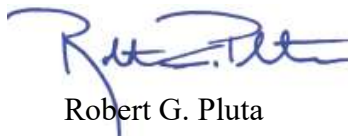
Oura acknowledged that Samsung did produce four spreadsheets relating to Samsung's economic domestic industry, but Oura alleged that their contents were not clear. For example, Oura was unable to identify from the documents whether they pertained to U.S.-only information. Samsung's counsel was not able to answer Oura's questions and agreed to investigate. Oura requested that Samsung produce any foreign counterpart information to any domestic information produced.

These four Samsung spreadsheets were also far from complete. Oura further requested a fuller set of documents supporting Samsung's economic domestic industry claims, including but not limited to carrier agreements, leases, warranty and repair contracts—and all documents supporting Samsung's economic domestic industry claims. Oura expects the production of the materials supporting Samsung's economic domestic industry claims to be complete by March 16, 2026.

Organizational Charts:

Samsung represented that it does not maintain organizational charts in the ordinary course of business but agreed to look for them and produce any if found. Samsung said it could provide a narrative response to an interrogatory seeking information about Samsung's organizational framework, and Oura indicated it would follow up with one.

Sincerely,



Robert G. Pluta

*Counsel for Respondents Ouraring Inc.
and Oura Health Oy.*

cc: Counsel of Record

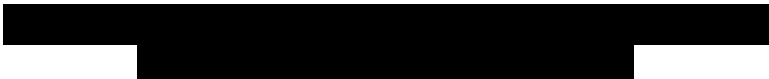


Exhibit 2

March 30, 2026

The Honorable Doris Johnson Hines
Administrative Law Judge
U.S. International Trade Commission
500 E Street, SW
Washington, DC 20435
JohnsonHines1468@usitc.gov

Re: *Certain Wearable Devices*, Inv. No. 337-1478 – G.R. 5.6.1 Discovery Dispute

Dear Honorable Judge Johnson Hines:

Respondents Ouraring Inc. and Oura Health Oy (“Oura”) seek to raise Samsung’s discovery deficiencies at the upcoming case management conference on April 2, 2026. Oura has complied with Ground Rule 5.1 by meeting and conferring with Samsung. Ex. A (correspondence). Oura informed Samsung of multiple, prejudicial deficiencies in its discovery in February, and despite a subsequent conference and proposed compromises, Samsung has still failed to 1) produce documents it agreed were relevant and 2) provide complete interrogatory responses. From 3:00 to nearly 4:00 ET on March 30, 2026, Oura and Samsung met and conferred about the issues set out below and were able to resolve some but not most of the issues.

I. Samsung’s Deficient Document Production

In February, Oura and Samsung met and conferred over deficiencies in Samsung’s discovery efforts. Ex. B (letter memorializing teleconference). Samsung agreed to make reasonable efforts to produce responsive documents. Samsung made a few subsequent, but deficient, document productions. No, or very few, documents were produced for the categories set out below, and on March 30, Samsung criticized Oura for requiring the production of documents when the discovery deadline was still weeks away, despite these RFPs being served two months ago on January 20 and Oura receiving no response from Samsung after the February 27 conference until Oura indicated it would submit a dispute letter. *See* Ex. A.

1) Depositions and hearing transcripts from prior litigation involving relevant subject matter as this Investigation, including but not limited to those relating to allegations that Samsung has an economic domestic industry in Inv. Nos. 337-TA-1299, -1376, -1379, and 1380. Samsung did not dispute that these were relevant but has not produced them. On March 30, Samsung indicated it would produce these materials relating to economic domestic industry but could not confirm which materials, which cases, or when those materials would be produced. Samsung indicated that these materials may include third-party information but did not explain whose or why Samsung’s transcripts would have third-party information. Samsung indicated that it would

[REDACTED]

produce the non-public versions of these materials, but these would have most material information redacted and consequently are insufficient substitutes.

2) Third-party correspondence concerning the Asserted or Related Patents. Samsung agreed to look into these documents but did not say whether this correspondence existed or could be produced without prejudicial burden.

3) Documents relating to Samsung's investments in the DI Products. Samsung contends an economic domestic industry based on a wide range of activities and investments but has failed to provide any underlying documents except for three spreadsheets prepared for litigation (one of which may be from a *different* litigation pursuant to a "subpoena") that appear to present investment data without explanatory descriptions. When asked about the spreadsheets produced before the February call, Samsung's counsel was unable to confirm the source of these spreadsheets or any details including, for example, whether they included investments in foreign activities or were limited to the DI Products. Nor has Samsung provided an explanation of these documents in its economic domestic industry contentions. Others are not dated or do not include the months leading up to the complaint filing date. On March 30, Samsung said it was not required to provide context for these documents. Accordingly, Oura cannot know whether Samsung has produced complete records of its investments, including those that could support Oura's contention that Samsung does not have a qualifying economic domestic industry as compared to its foreign investments or investments in other products. Among the documents Samsung has not produced are facility leases, equipment invoices, depreciation models, employment charts that show compensation and headcount allocations, and any contracts, including with vendors and carriers that Samsung appears to rely on. And because Samsung did not identify with any specificity the relevant facilities, equipment, and vendors in its economic domestic industry contentions, Oura cannot know whether Samsung's summary spreadsheets provide complete information.

Finally, Oura asked for confirmation from Samsung that it had produced all licenses to the Asserted Patents, including internal licenses, and all responsive technical documents, excluding source code, which is governed by a different process. On March 30, Samsung said it would confirm that all licenses have been produced and that Samsung has no internal licenses, in addition to confirming that all technical documents responsive to Oura's RFPs have been produced, but Samsung did not do so before the deadline for this letter. Oura respectfully requests that Samsung be compelled to produce all such documents identified above or confirm in writing that no such documents exist.

II. Samsung's Incomplete Interrogatory Responses

On February 27, 2026, Samsung agreed to investigate the following interrogatory responses—or consider the proposed compromises—but did not supplement them. Ex. C (Samsung Interrogatory Responses, March 16, 2026).

Interrogatory No. 7 seeks a description of Samsung's competitive analyses on wearable products and those that Samsung contends practice the Asserted Patents. Samsung provided no substantive response and did not identify documents pursuant to Rule 210.29(c). On March 30, Samsung represented it would confirm in writing a complete supplement by April 10 but has not yet so confirmed.

[REDACTED]

Interrogatory No. 8 seeks a description of Samsung's investigation into (alleged) infringement by the Accused Products. Samsung said it had no non-privileged responsive *documents*. On the February 27 teleconference, Samsung agreed it would investigate the circumstances and, if it learned there was no responsive *information*, state so clearly. On March 30, Samsung represented it would confirm in writing a complete supplement by April 10 but has not yet so confirmed.

Interrogatory No. 9 seeks identification of Samsung's relevant personnel. Samsung just named two people without description or explanation. As a compromise, and at Samsung's suggestion, Oura offered to limit this interrogatory to just the five persons most knowledgeable about each of Samsung's DI Products. On March 30, Samsung represented it would confirm in writing a complete supplement by April 10 but has not yet so confirmed.

Interrogatory No. 12 seeks a description of communications with the named inventors of the Asserted Patents, which Oura narrowed as a compromise to those discussions or agreements relating to the Asserted Patents or DI Products. On March 30, Samsung represented it would confirm in writing a complete supplement by April 10 but has not yet so confirmed.

In addition, despite the passing of burden contention deadline on March 16, Samsung has failed to provide complete answers to the following interrogatories:

Interrogatory No. 3 seeks a description of the circumstances of the inventions claimed in the Asserted Patents. Samsung merely incorporated by reference the Complaint, the Asserted Patents, and their public file histories. These filings fall far short of the descriptions requested. On the March 30 call, Samsung's counsel indicated that these documents should be sufficient and was unable to confirm whether a supplement was planned.

Interrogatory No. 13 seeks a description of the ownership interests in the Asserted Patents. Samsung's response only incorporated by reference the Complaint, Exhibit 10 to the Complaint that lists licensees without any explanation, and produced assignment and file history records. Although these arguably relate the ownership interests, they do not provide a full description of the ownership interests that would allow Oura to fairly probe Samsung's standing. On March 30, Samsung represented it would confirm in writing a complete supplement by April 10 but has not yet so confirmed.

Oura respectfully requests that the ALJ compel Samsung to provide supplements to these interrogatories or clearly state that Samsung has no responsive information.

Sincerely,
/s/ Jasjit S. Vidwan

Jasjit S. Vidwan

*Counsel for Respondents Ouraring Inc.
and Oura Health Oy*

CERTIFICATE OF SERVICE

I hereby certify that a copy of the foregoing document was served upon the following as indicated below on March 30, 2026:

The Honorable Doris Johnson Hines Administrative Law Judge U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W., Room 317 Washington, DC 20436 JohnsonHines1468@usitc.gov	Via Box and email: JohnsonHines1468@usitc.gov
Counsel for Complainants Samsung Electronics Co., Ltd and Samsung Electronics America, Inc. D. Sean Trainor O'MELVENY & MYERS LLP 1625 Eye Street, NW Washington, DC 20006 Telephone: (202) 383-5300 Facsimile: (202) 383-5414	Via email: OMM-SAMSUNG-OURA@OMM.COM

/s/ Jasjit S. Vidwan
Jasjit S. Vidwan

*Counsel for Respondents Ouraring Inc.
and Oura Health Oy*



Exhibit 3

REDACTED IN ENTIRETY

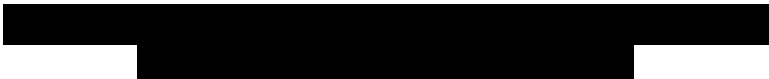


Exhibit 4

April 29, 2026

The Honorable Doris Johnson Hines
Administrative Law Judge
U.S. International Trade Commission
500 E Street, SW
Washington, DC 20435
JohnsonHines1468@usitc.gov

Re: *Certain Wearable Devices*, Inv. No. 337-1478 – G.R. 5.6.1 Discovery Dispute

Dear Honorable Judge Johnson Hines:

Respondents Ouraring Inc. and Oura Health Oy (“Oura”) seek fundamental information from Complainants Samsung Electronics Co. and its U.S. subsidiary Samsung Electronics America, Inc. (together, “Samsung”) to challenge Samsung’s conclusory domestic industry claims. Although Oura has sought this information for more than two months, Samsung has stalled discovery by repeatedly promising forthcoming supplements but then failing to deliver them. Oura respectfully requests that Samsung be compelled to provide complete interrogatory responses and document productions.

I. Samsung’s Pattern of Tactical Delays

Beginning February 27, 2026, Oura met and conferred multiple times with Samsung about its deficient economic domestic industry (“EDI”) and other interrogatory responses and document production, but always pausing before seeking to compel discovery where Samsung promised to provide curative supplements. Ex. A (Mar. 2, 2026, Ltr. R. Pluta to S. Trainor). For the last CMC, Oura submitted a dispute letter on March 30, which it withdrew after Samsung committed to curing those deficiencies by April 10. Ex. B (Dispute Letter); Ex. C (Apr. 1 Email J. Haines with N. Schroeder). But Samsung made only small supplements, leaving important issues of EDI bare.

The upcoming May 4 CMC is the last scheduled conference before the end of fact discovery. On April 21, Oura served Samsung a letter describing Samsung’s remaining deficiencies, including the missing EDI discovery, and offering to wait for Samsung’s cure on April 24 or to meet and confer. Ex. D. Samsung did not respond until Oura followed up, again requesting a meet and confer on April 27, at which point Samsung finally agreed to meet and confer on April 28. Ex. E (Apr. 27 Email R. Pluta with N. Schroeder). A couple hours before, Samsung served a responsive letter, standing its ground on discovery for domestic industry. Ex. F. The conference was not productive. Instead, Samsung indicated that its deponent, Mr. Martinez—offered for deposition on the last day of discovery—will be able to further elucidate on Samsung’s EDI contentions. Samsung’s EDI contentions have been to-date vague and conclusory. Ex. G

[REDACTED]

(Samsung Response to Rog. No. 11); Ex. H (Samsung EDI Contentions). Although Samsung’s “final” contentions are due May 7, this information is entirely within Samsung’s control and has been requested by Oura for months. Samsung seems intent on dumping all this information it has possessed since the beginning of this investigation in the very last days of discovery (if not thereafter). This leaves Oura significantly prejudiced to be able to test Samsung’s EDI claims.

II. Samsung Failed to Provide Sufficient Economic Domestic Industry Discovery

Samsung chose to file this ITC Investigation in retaliation for Oura enforcing its intellectual property rights against Samsung’s free riding in the wearable ring market. As a complainant, Samsung must prove its domestic industry. Samsung has thus far withheld the complete landscape of its worldwide investments in the DI Products, contending that sales data and spreadsheets that are U.S.-specific and that commingle relevant and irrelevant SEA expenses are sufficient. Samsung misunderstands its obligations. Oura is entitled to “all information,” including “the granular information...use[d] to arrive at aggregate information” in order to “test [Samsung’s] economic domestic industry.” *Certain Digital Video Receivers & Related Hardware & Software Components*, Inv. No. 337-TA-1103, Order No. 17 at 2-3 (July 18, 2018) (EDIS ID 658003). ALJs have found prejudice where complainants withheld documents that could support challenges to DI claims. *See, e.g., Certain Light-Emitting Diodes & Products Containing Same*, Inv. No. 337-TA-802, Order No. 15 at 4 (May 12, 2012) (EDIS ID 480786) (noting that “the complainant has the luxury of being able to fully prepare its domestic industry case even before filing the complaint”); *Certain Light-Based Physiological Measurement Devices & Components Thereof*, Inv. No. 337-TA-1276, Order No. 32 at 6-7 (May 5, 2022) (EDIS ID 771338) (finding that withholding production of DI documents until the week before final contentions was prejudicial and improper).

Samsung’s production looks nothing like it should. Samsung produced just two spreadsheets showing investments in plant, equipment, labor, and capital: **First**, SAMS382-011281 (Ex. I) (which appears duplicative of SAMS382-0026452 and shares the same file name,

[REDACTED] *Id.* ([REDACTED])). As it turns out, this is an omnibus spreadsheet that [REDACTED]. On April 24, after repeated requests by Oura, Samsung produced deposition testimony and exhibits that it had produced in response to subpoenas in past investigations. These show that SAMS382-011281 is entirely generic. [REDACTED]

[REDACTED] | [REDACTED] Ex. K (Sheppard Dep.) 23:19-24:14. Mr. Sheppard also admitted that the [REDACTED] —none of which are relied on here. *Id.* 147:18-148:20; *see also id.* 19:5-16 ([REDACTED])). **Second**, SAMS382-0028070 (Ex. L) by its file name [REDACTED] purportedly shows property information for SEA as of July 2025, but what it actually shows and how it relates to the DI Products remains a mystery. Samsung does not identify which of these properties it is claiming for EDI. Many lack [REDACTED] information. And at least some are used by different entities: for example, [REDACTED]

Samsung's EDI contentions did not explain these documents or even appear to use them. Ex. H. They claim that Samsung has significant U.S. investments in plant, equipment, labor, capital, and expenditures related to the DI Products. They contain overstated allegations without any citations to supporting documents, making it impossible for Oura to know the sources for Samsung's claims. *See Certain Fiber-Optic Connectors, Adapters, Jump Cables, Patch Cords, Products Containing the Same, & Components Thereof*, Inv. No. 337-TA-1399, Order No. 31 at 6-9 (Aug. 8, 2024) (EDIS ID 830949) (compelling explanation of how documents directly support EDI contentions). They also do not identify non-U.S. costs or which U.S. costs are attributable to which DI Products—or even which of the three categories of phones, watches, and rings.

Because months of discussions had passed without Samsung admitting that its EDI discovery was thin, Oura issued targeted interrogatories spelling out the information it sought: which Samsung groups perform work related to the DI Products, which workers perform that work, their compensation for that work, which of those workers are not based in the U.S., which DI Products that work relates to, and where in the world that work is performed. Ex. M (Rog Nos. 15-20). Although Samsung served boilerplate objections and nominal responses on April 27 (*id.*), it did not substantively respond, said it was not prepared to discuss its objections during the parties' April 28 meet and confer, and has still not identified any non-U.S. investments in the DI Products nor described in any detail what work applies to which categories of DI Products (*i.e.*, phones, watches, and rings). Instead, Samsung incorporated by reference the document and contentions Oura had already identified as being incomplete, in addition to citing "forthcoming" deposition testimony of Mr. Martinez. *Id.* Such testimony—from a deposition that Samsung set for the last day of fact discovery—will not cure Samsung's deficiencies. Not only is Oura entitled to timely discovery on Samsung's claims, but depositions are not conducive to presenting granular data and explanations that are relevant to Samsung's significance claims. For example, Samsung's representative in a previous investigation was unable to answer basic questions about Samsung's expense report. *See* Ex. K (Sheppard Dep.) at 155:10-157:20. Moreover, Mr. Martinez in the 1468 Inv. was unable to answer any questions about non-U.S. operations. *See, e.g.*, Ex. N (Martinez Dep.) 179:15-21 (admitting that "outside of the U.S.," he did not "have visibility"). But his testimony did illustrate the gaps in Samsung's discovery responses in *this* Investigation. *See, e.g., id.* 176:8-12 (admitting that smart ring development happens "outside the U.S.").

In sum, Samsung has improperly withheld its full financial picture, maintaining that just two spreadsheets identify all "financial and investment information relating to its economic DI claims." Ex. O (Apr. 10 Email from N. Schroeder). This is not credible. Even if these two documents contain everything Samsung wants to rely on, their cherry-picked data would present the best of all possible pictures for Samsung's case. **First**, they show only U.S. investments by Samsung's U.S. subsidiary, cutting out the fuller picture of Samsung's foreign investments—through SEC or any other Samsung affiliates or third-party partners. **Second**, they cover expenses for an unmanageably large portfolio of products completely unrelated to the Asserted Patents. SEC and SEA brought this investigation and should have prepared proper evidence for its case. Relying on a stock, generic summary, withholding any explanation until the end of discovery, and refusing relevant discovery requested by Oura, is prejudicial to Oura's efforts to test Samsung's EDI claims.

Oura respectfully requests that the ALJ compel Samsung to provide the discovery described above by May 7.



Sincerely,
/s/ Jasjit S. Vidwan

Jasjit S. Vidwan

*Counsel for Respondents Ouraring Inc.
and Oura Health Oy*



Exhibit 5

REDACTED IN ENTIRETY

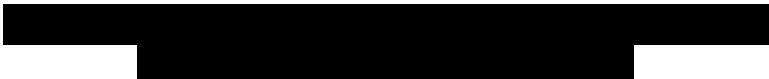


Exhibit 6

[REDACTED]

ERRATA SHEET FOR THE TRANSCRIPT OF:

In the Matter of Certain Wearable Devices

Inv. No. 337-TA-1478

Deponent: John C. Jarosz
Deposition Date: July 2, 2026

I, JOHN C. JAROSZ, do hereby certify that I have read the foregoing transcript of my testimony taken on 07/02/26, and further certify that it is a true and accurate record of my testimony (except for the corrections listed below):

Page	Line	Current	Corrected	Reason
11	18:19	the ROE report	the Rowe Report	Transcription Error
16	17	the ROE report	the Rowe Report	Transcription Error
40	1	the difference between [REDACTED] [REDACTED]	the difference between [REDACTED] [REDACTED]	Transcription Error
59	12:13	by DI. Product companies	by DI Product. Companies	Transcription Error
99	16	[REDACTED]	[REDACTED]	Transcription Error
104	1:2	[REDACTED]	[REDACTED]	Transcription Error



John C. Jarosz
July 22, 2026

CERTIFICATE OF SERVICE

I hereby certify that a copy of the foregoing **RESPONDENTS' OPPOSITION TO SAMSUNG'S MOTION *IN LIMINE* NO. 1 (EDIS Doc. ID 892505, Mot. No. 1478-012)** was served upon the following as indicated below on September 2, 2026:

The Honorable Lisa R. Barton Secretary to the Commission U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W. Washington, DC 20436	Via EDIS
The Honorable Doris Johnson Hines Administrative Law Judge U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W., Room 317 Washington, DC 20436	Via email and Box: JohnsonHines1478@usitc.gov
Counsel for Complainants Samsung Electronics Co., Ltd and Samsung Electronics America, Inc. D. Sean Trainor O'MELVENY & MYERS LLP 1625 Eye Street, NW Washington, D.C. 20006-4061 Telephone: (202) 383-5300	Via email: OMM-SamsungOura@OMM.com

/s/ Jasjit S. Vidwan
Jasjit S. Vidwan

*Counsel for Respondents Ouraring Inc.
and Oura Health Oy*

CERTIFICATE OF SERVICE

I hereby certify that a copy of the foregoing **PUBLIC VERSION OF RESPONDENTS' OPPOSITION TO SAMSUNG'S MOTION *IN LIMINE* NO. 1** was served upon the following as indicated below on September 10, 2026:

The Honorable Lisa R. Barton Secretary to the Commission U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W. Washington, DC 20436	Via EDIS
The Honorable Doris Johnson Hines Administrative Law Judge U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W., Room 317 Washington, DC 20436	Via email and Box: JohnsonHines1478@usitc.gov
Counsel for Complainants Samsung Electronics Co., Ltd and Samsung Electronics America, Inc. D. Sean Trainor O'MELVENY & MYERS LLP 1625 Eye Street, NW Washington, D.C. 20006-4061 Telephone: (202) 383-5300	Via email: OMM-SamsungOura@OMM.com

/s/ Jasjit S. Vidwan

Jasjit S. Vidwan

*Counsel for Respondents Ouraring Inc.
and Oura Health Oy*